

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motions to Compel Further Responses: This is an action alleging retaliation under the California Fair Employment and Housing Act, sexual harassment, failure to prevent harassment and retaliation under the California Family Rights Act (“CFRA”). Defendant City of Redding has filed four motions to compel Plaintiff to provide further responses to discovery requests. The City seeks further responses to: 1) Form Interrogatories, Employment and General, Set One, 2) Form Interrogatories, General, Set Two, 3) Requests for Admission, Set One, and 4) Requests for Production, Set One.

Pursuant to CCP §§ 2030.300(b), 2031.310(b), 2033.290(b) motions to compel further responses must be accompanied by a meet and confer declaration. A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. CCP § 2016.040. The Declarations of Ashley Riser filed in support of the four motions establish the following. In early September, the parties each propounded discovery. The parties thereafter agreed to at least two mutual extensions to respond. In late November, disputes arose regarding each side’s responses. The parties agreed via email to an additional mutual extension to serve supplemental responses by December 13, 2024. Plaintiff’s counsel thereafter revoked their agreement to the final mutual extension, which the City indicated would mean a revocation of the extension they had agreed to. The City indicated this would mean both parties must supplement by December 6, 2024. The City supplemented its responses on December 6, 2024. Plaintiff did not supplement by December 6, 2024. No further evidence of meet and confer efforts has been provided. Based on the meet and confer email correspondence provided to the Court, it does not appear Defendant reached out to Plaintiff regarding their promised supplemental responses between November 27, 2024, and the date these motions were filed on January 2, 2025. (See Declarations of Ashley Riser.)

The Supplemental Declarations of Ashley Riser, filed in support of Defendant’s Replies to each of these four discovery motions, indicate that Plaintiff has now served amended responses to each of the four discovery sets at issue. Plaintiff served the amended responses and a privilege log on January 17, 2025, two weeks after Defendant’s motions to compel were filed. However, Defendant’s Replies do not address whether Plaintiff’s amended responses remain deficient, or if they resolve some or all of the issues raised in these motions.

If Defendant contends that the amended responses remain deficient, then the parties are ordered to meet and confer either in person or by phone regarding the remaining deficiencies no later than February 7, 2025. After additional meet and confer efforts, Defendant must file and serve a supplemental declaration concisely outlining which issues raised in these motions, if any, still require Court intervention no later than February 11, 2025. Hearing on this matter is continued to **Tuesday, February 18, 2025, at 8:30 a.m. in Department 64.** If no disputes remain which require court intervention, Defendant should withdraw these motions at least 5 days prior to the continued hearing date.

9:00 a.m. Review Hearings

ANDRADE, ET AL. VS. ANDERSON-COTTONWOOD IRRIGATION DISTRICT

Case Number: 24CV-0204478

This matter is on calendar for review regarding trial setting. The previous trial date was vacated by the Court's order dated December 2, 2024. The Court designates this matter as a Plan III case and intends to set the matter for trial no later than March 3, 2026. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

IN RE CANTERO, ET AL.

Case Number: 24PB-0032569

This matter is on calendar to confirm deposit of funds into blocked accounts. No Receipts and Acknowledgements have been filed. The settlement funds were made available for the Guardian Ad Litem on November 25, 2024. **An appearance by counsel and the Guardian Ad Litem is necessary on today's calendar. Absent good cause being presented for the delay, the Court intends to issue an Order to Show Cause Re: Monetary Sanctions to Guardian Ad Litem and counsel for failure to deposit the minors' settlement funds into blocked accounts.**

FORRESTER VS. M&M MEYERS ENTERPRISES, INC, ET AL.

Case Number: 23CV-0202671

This matter is on calendar for review regarding status of default judgment. Plaintiff has filed a status statement indicating that Plaintiff has identified Defendant's insurance carrier and counsel, and the parties are discussing setting aside default. Plaintiff requests a continuance. This matter is continued to **Monday, May 5, 2025, at 9:00 a.m. in Department 64** for review regarding status of default judgment. **No appearance is necessary on today's calendar.**

HUMPHREY VS. JAMV, INC

Case Number: 23CV-0202578

This matter is on calendar for review regarding status of mediation. The parties previously informed the Court that mediation was scheduled for January 9, 2025. A status report/stip and order was filed on January 29, 2025, explaining the current status and requesting this matter be continued approximately 30 days. This request has been granted and the Court has continued this matter to **9:00 a.m. on March 10, 2025 in Dept. 64. No appearance is necessary on today's calendar.**

JOHN DEERE CONSTRUCTION & FORESTRY COMPANY VS. J A HEADRICK, INC., ET AL.

Case Number: 23CV-0203830

This matter is on calendar for review regarding status of judgment/dismissal. A Conditional Notice of Settlement was filed on August 7, 2024, which indicates this matter would be dismissed no later than December 1, 2025. **This matter is continued to December 8, 2025 at 9:00 a.m. in Dept. 64.**